

Narcotic Drugs (Control) Act, 1976

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Amending Acts

1. Narcotic Drugs (Control) (First Amendment) Act, 2043 2043.7.24
2. Narcotic Drugs (Control) (Second Amendment) Act, 2044 2044.6.9
3. Administration of Justice Act, 2048 2048.2.16
4. Act to Amend Some Nepal Acts, 2048 2049.1.8
5. Narcotic Drugs (Control) (Third Amendment) Act, 2049 2050.2.32
6. Act to Amend Some Nepal Acts, 2055 2055.1.7

Verification and Publication Date

7. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.1.7
8. Act to Amend Some Nepal Acts, 2072 2072.11.13

Act No. 24 of the year 2033

An Act Made to Control Narcotic Drugs

Preamble: Whereas, it is desirable to control the cultivation, production, manufacture, purchase-sale, storage, transportation, consumption, and import-export, etc., of narcotic drugs in order to maintain the morality, health, convenience, and economic interest of the general public;

Now, therefore, this Act is made by His Majesty King Birendra Bir Bikram Shah Dev, with the advice and consent of the National Panchayat. Chapter 1

Preliminary

1. Short Title, Extent, and Commencement: (1) This Act may be called the "Narcotic Drugs (Control) Act, 2033".

(2) Its extent shall be throughout Nepal Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066..

(3) This Act shall come into force immediately. 2. Extraterritorial Application of the Act: (1) This Act shall also apply to any Nepali citizen or foreigner who, in contravention of this Act or the rules or orders made under this Act, exports or imports any narcotic drug from Nepal Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. or into Nepal Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. and resides abroad engaging in trade.

(2) A person undertaking actions pursuant to sub-section (1) shall be dealt with and punished under this Act

as if such person had undertaken such actions within Nepal Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.. 3.

Definitions: In this Act, unless the subject or context otherwise requires:- (a) "Narcotic Drug" means:- (1) Cannabis, (2) Medicinal cannabis, (3) Opium, (4) Prepared opium, (5) Medicinal opium, (6) Coca shrub and leaves, and Inserted by the Third Amendment.(6a) Any substance prepared by mixing the essence, extract, or salts of opium and coca. (7) Any natural or synthetic narcotic drugs and psychotropic substances specified by the Government of Nepal from time to time by publishing a notice in the Nepal Gazette, including their salts and other substances. (b) "Cannabis" means the following substances:- (1) Leaves and flowers of any plant of the cannabis genus, including bhang and siddhi, (2) Charas and natural resin, gum, and juice obtained from the cannabis plant, (3) Concentrate, extract, essence, mixture, and beverage containing any of the substances mentioned above. (c) "Medicinal Cannabis" means the extract or essence of cannabis. (d) "Opium" means the coagulated juice of the opium poppy. (e) "Prepared Opium" means opium prepared for consumption and also includes the dross of opium after it has been smoked. (f) "Medicinal Opium" means opium in any form prepared by any method for medicinal purposes. (g) "Coca Shrub and Leaves" means the shrub and leaves of any species of the genus *Erythroxylum*, as defined in the Single Convention on Narcotic Drugs, 1961. (h) "Preparation" means a solid or liquid mixture prepared in dosage form containing one or more narcotic drugs. (i) "Production" means extracting cannabis, bhang, siddhi, or charas from the cannabis plant and extracting leaves from the coca shrub. (j) "Manufacture" means all methods of obtaining narcotic drugs other than the act of production, and this term also includes the method of processing a narcotic drug, converting one narcotic drug into another, or preparing a narcotic drug except for medicinal purposes. Inserted by the Third Amendment.(j1) "Controlled Delivery" means the technique of allowing consignments of narcotic drugs sent by any person from Nepal Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. or through Nepal Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. to other countries to pass out of, or through, the territory of Nepal under the direct supervision of a drug investigation officer, in the same condition or by replacing the narcotic drug with another similar substance inside the narcotic drug's package, for the purpose of identifying the final destination of such narcotic drugs and the person receiving them. Inserted by the Third Amendment.(j2) "Investigation Officer" means an employee up to the rank of Police Assistant Inspector or Khardar designated by the chief of the narcotic drug control law enforcement agency in the course of narcotic drug control investigation.

Inserted by the Third Amendment.(j3) "Medical Centre" means a medical centre approved by the Government of Nepal for the treatment and rehabilitation of drug addicts. Inserted by the Third Amendment.(j4) "Addiction" means the act of consuming narcotic drugs in an amount or quantity exceeding the dosage and quantity recommended by a licensed physician or without such recommendation. (t) "Drug Control Officer" means an officer appointed Inserted by the First Amendment. or designated by the Government of Nepal pursuant to Section 21. (th) "Prescribed" or "As prescribed" means prescribed by or as prescribed in the rules made or orders issued under this Act. Chapter 2 Prohibition and Control 4. Prohibited Acts: No person shall perform the following acts:- Amended by the Second Amendment.(a) To cultivate, produce, prepare, purchase, sell or distribute, export or import, transport, store, or consume cannabis, Amended by the First Amendment.(b) To cultivate opium or coca, or to produce opium, coca leaves, or other narcotic drugs, (c) To manufacture or prepare narcotic drugs, (d) To sell or distribute narcotic drugs, (e) To export or import narcotic drugs, and Amended by the First Amendment.(f) To purchase, store, keep, or transport narcotic drugs, and Inserted by the First Amendment.(g) To consume narcotic drugs other than cannabis, Provided that, (1) The Government of Nepal may make rules to provide for the production of charas from naturally growing wild cannabis plants

in the western hilly region of Nepal Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. for a prescribed period, the collection, keeping, purchase, and sale of such charas; and if a person obtains a license accordingly and performs any act, it shall not be deemed an offence under this section. Inserted by the Third Amendment.(1a) Chemical substances used in the preparation of narcotic drugs, as defined in the Single Convention on Narcotic Drugs, 1961, may only be imported-exported, transported, stored, sold-distributed, and used in a prescribed proportion with the permission of the Chief Drug Control Officer. (2) The manner, format, and conditions of the license to be granted under the proviso (1), the officer authorized to grant such license, the fees leviable therefor, and other controls and arrangements over the work done under the license shall be as prescribed. Inserted by the First Amendment.Explanation: For the purposes of clauses (b), (c), (d), (e), and (f) of this section, "Narcotic Drug" shall not mean cannabis. 5.

Prohibition Not Applicable: Notwithstanding anything contained elsewhere in this Act, the following persons shall not be deemed prohibited from consuming narcotic drugs in the following circumstances:- (a) Any person purchasing and consuming narcotic drugs from a licensed shop in the dosage recommended by a licensed physician for medical treatment, (b) Persons of a prescribed class consuming narcotic drugs in a prescribed quantity. Inserted by the First Amendment.5a. Must be Mentioned in the Physician's Prescription: If a person comes to purchase a narcotic drug with a licensed physician's prescription, the licensed shop shall, after selling the narcotic drug to such person according to the physician's prescription, indicate the sale on the physician's prescription. Inserted by the Second Amendment.5b. Duty of the Physician: When a physician must recommend a narcotic drug for a person, the physician shall not recommend a narcotic drug to a person who does not require it, nor recommend a narcotic drug in a quantity exceeding the requirement even for a person who does require it. 6. Government of Nepal Not to be Hindered: Nothing contained in this Act shall be deemed to hinder the Government of Nepal, or any institution acting on behalf of the Government of Nepal with a special permit obtained from the Government of Nepal and under the full direction and control of the Government of Nepal, from cultivating, preparing, producing, manufacturing, or importing-exporting any narcotic drug, or selling narcotic drugs to anyone according to the recommendation of a licensed physician, for medicinal or scientific research purposes. 7. Authority to Issue Warrant: If there is reason to believe that a person has committed or is about to commit an offence punishable under this Act, the Drug Control Officer may issue a warrant for the arrest and search of such person. If the Drug Control Officer believes that any person related to such offence is hiding or any narcotic drug is kept in any house, land, vehicle, or other place, the Officer may issue an order to search such house, land, vehicle, or place. 8.

Power to Enter, Search, Seize, and Arrest Without Warrant: (1) If any offence under this Act is occurring in any house, land, vehicle, or place, and there is a likelihood that the offender might escape or evidence of the offence might disappear if action is not taken immediately, the Drug Control Officer Inserted by the Third Amendment. or a police employee of at least the rank of Police Assistant Inspector may, at any time, make a record of the fact and do the following acts:- (a) Enter such house, land, vehicle, or any other place, (b) If there is any obstruction or opposition while entering as above, break open the door to enter or take necessary action to remove such obstruction or opposition, (c) Seize the narcotic drugs and other items related to the offence and any documents that may serve as evidence, and (d) Stop, search, and if deemed necessary, also arrest any person suspected of having committed the offence. (2) While entering or searching any house, land, vehicle, or any other place pursuant to sub-section (1), it shall be done in the presence of a member of the concerned Amended by the Act to Amend Some Nepal Acts, 2048. Municipality or Amended by the Act to Amend Some Nepal Acts, 2072. Rural Municipality, or a respectable person of that locality, or an employee of another government office, acting as a witness. Inserted by the Third

Amendment. Provided, if there is a valid reason that such persons are not available despite attempting to prepare the inventory in the presence of a member of the Municipality or Amended by the Act to Amend Some Nepal Acts, 2072. Rural Municipality or Ward Committee, or a respectable person of that locality, or an employee of another government office, the inventory may be prepared in the presence of at least two drug investigation officers or at least two employees up to the rank of Police Assistant Inspector. Inserted by the Third Amendment.8a.

Power to Demand Details of Financial Transactions: (1) Notwithstanding anything contained in the prevailing law, if there is a credible basis that any person, association, organization, firm, company, or international organization is engaged in the illicit trafficking of narcotic drugs, the Drug Control Officer may demand details of accounts held in the name of such person, firm, association, organization, company, or international organization in any bank or financial institution. (2) If the amount received as per sub-section (1) is found to be used in the illicit trafficking of narcotic drugs, the officer hearing the case may order the concerned bank or financial institution to freeze such amount. 9. Must Report Arrest and Seizure: If any person is arrested, or any person, house, land, vehicle, or other place is searched, or narcotic drugs or other items are seized under this Act, the Drug Control Officer shall send a report of such arrest, search, or seizure to the officer one level above within twenty-four hours of such arrest, search, or seizure. Inserted by the Third Amendment.9a.

Confidentiality Must be Maintained: If the party filing the case requests that any document or the name of a person involved in a narcotic drug case be kept confidential, the officer hearing the case shall keep such document or the name of the person confidential for the period as requested. 10. Arrested Person and Seized Items Must be Produced Before the Officer Hearing the Case: The arrested person and seized items taken by the Drug Control Officer under this Act shall be produced and submitted before the officer hearing the case within twenty-four hours of the arrest or seizure, excluding travel time. Inserted by the Third Amendment.10a.

Power to Tape or Censor Anything: In the course of a narcotic drug investigation, if ordered by the officer investigating or hearing the case, the Drug Control Officer may tape, copy, or photograph electronic technologies such as telephone, telex, fax, etc., of any person related to narcotic drugs, and may censor any letters, parcels, documents, or any other mail items received by post. Amended by the Second Amendment.11. Drug Control Officer May Order Destruction of Narcotic Drugs: The Drug Control Officer may order the destruction of the following narcotic drugs:- (a) Cannabis, opium, and coca being cultivated on any land in contravention of this Act, (b) Naturally grown cannabis, opium, and coca, except in areas exempted under Section 4, (c) Any narcotic drugs found in an unclaimed state, and (d) Narcotic drugs related to an offence under this Act where the case cannot be filed in court. Amended by the Third Amendment.11a.

Narcotic Drugs Must be Destroyed After Extension of Time Limit in Court in Cases Related to Narcotic Drugs: After narcotic drugs are recovered from any person, the Drug Control Officer shall take a sample of up to a maximum of three grams from each package of the narcotic drug in the presence of a Police Assistant Inspector and an employee assigned by the officer hearing the case, and send it for testing. To determine the nature of the narcotic drug, the investigation officer for the narcotic drug case shall retain a sample of such narcotic drug as a specimen. After such case is presented in court for an extension of the time limit, the court shall, within fifteen days of the case being presented in court for the extension, retain a sample of up to a maximum of three grams from each package and destroy the remaining narcotic drug in the presence of a representative of the concerned District Court, a representative of the local District Administration Office, and a representative of the local Municipality or Amended by the Act to Amend Some Nepal Acts, 2072. Rural Municipality. Amended by the Third Amendment.11b. A Record of Destroyed Narcotic Drugs Must be Kept: When destroying narcotic drugs pursuant to Sections 11 and 11a, the concerned officer shall keep a record related to the type and quantity of the narcotic drug. Inserted by the Second Amendment.11c. Government of

Nepal May Make Narcotic Drugs Available for Medicine: Notwithstanding anything contained elsewhere in this Act, the Government of Nepal may, if deemed appropriate, make cannabis and opium from among the confiscated or seized narcotic drugs under this Act available in the required quantity to any medicine manufacturing body for the purpose of making medicine. Inserted by the Third Amendment.11d. May be Submitted as Evidence: (1) Any kind of documents collected abroad in the course of a narcotic drug investigation may be submitted as evidence before the officer hearing the case. (2) In the course of a narcotic drug investigation, the investigation officer may submit video tapes, cassette tapes, and any other kind of photographs as evidence before the officer hearing the case. 12.

Burden of Proof: If any narcotic drug is found in the possession of any person, or evidence is found that cannabis, opium, or coca is being or has been cultivated on land cultivated by that person, or any substance on which some process required for the manufacture or production of a narcotic drug has been completed is found, or any residue remaining after the production of a narcotic drug from a substance is found kept in the possession of that person, that person shall have to prove that such substance was obtained or kept in accordance with this Act and the rules or orders made under this Act. If such proof cannot be submitted and unless otherwise proven, that person shall be deemed to have committed an offence punishable under this Act. 13. Repealed by the Second Amendment Chapter 3 Penalties Amended by the Third Amendment.14. Penalties: (1) Amended by the Act to Amend Some Nepal Acts, 2075.A person performing acts prohibited under Section 4 shall be liable to the following penalties according to the gravity of the offence:- (a) For a person consuming cannabis: imprisonment for up to one month or a fine of up to two thousand rupees.

Provided, if a person or institution gives an undertaking to take responsibility for such a person by providing treatment at a medical centre for up to one month, and submits a report every fifteen days from that medical centre confirming that treatment is ongoing, the officer hearing the case may not punish such a person.

(b) For a person cultivating up to twenty-five cannabis plants: imprisonment for up to three months or a fine of up to three thousand rupees.

(c) For a person cultivating more than twenty-five cannabis plants: imprisonment for up to three years or a fine ranging from five thousand rupees to twenty-five thousand rupees.

(d) For a person producing, preparing, purchasing, selling or distributing, exporting or importing, transporting, or storing cannabis:-

(1) If the quantity is up to fifty grams: imprisonment for up to three months or a fine of up to three thousand rupees.

(2) If the quantity is from fifty grams to five hundred grams: imprisonment from one month to one year and a fine from one thousand rupees to five thousand rupees.

(3) If the quantity is from five hundred grams to two kilograms: imprisonment from six months to two years and a fine from two thousand rupees to ten thousand rupees.

(4) If the quantity is from two kilograms to ten kilograms: imprisonment from one year to three years and a fine from five thousand rupees to twenty-five thousand rupees.

(5) If the quantity is from ten kilograms upwards, whatever the amount: imprisonment from two years to ten years and a fine from fifteen thousand rupees to one hundred thousand rupees.

(e) For a person consuming opium, coca, or narcotic drugs made therefrom: imprisonment for up to one year or a fine of up to ten thousand rupees.

Provided, if a person or institution gives an undertaking to take responsibility for such a person by providing treatment at a medical centre for up to three months, and submits information every fifteen days from that medical centre confirming that treatment is being provided, the officer hearing the case may not punish such

a person.

(f) For a person cultivating opium or coca:-

(1) If up to twenty-five plants: imprisonment from one year to three years and a fine from five thousand rupees to twenty-five thousand rupees.

(2) If more than twenty-five plants, whatever the number: imprisonment from three years to ten years and a fine from twenty-five thousand rupees to two hundred thousand rupees.

(g) For a person performing other prohibited acts, excluding the acts of consumption and cultivation, related to opium, coca, or narcotic drugs made therefrom:-

(1) For trafficking up to twenty-five grams: imprisonment from five years to ten years and a fine from five thousand rupees to twenty-five thousand rupees.

(2) For trafficking from twenty-five grams to one hundred grams: imprisonment from ten years to fifteen years and a fine from seventy-five thousand rupees to two hundred thousand rupees.

(3) For trafficking from one hundred grams upwards, whatever the quantity: imprisonment from fifteen years to life and a fine from five hundred thousand rupees to two million five hundred thousand rupees.

(h) For a person who abuses natural or synthetic narcotic drugs or psychotropic substances specified by the Government of Nepal from time to time by publishing a notice in the Nepal Gazette, including their salts and other substances: imprisonment for up to two months or a fine of up to two thousand rupees or both. Provided, if any person or institution gives an undertaking to take responsibility for such an addict by providing treatment at a medical centre for up to three months, and the officer hearing the case directs that information confirming treatment is being provided from that medical centre be submitted every fifteen days, such officer may not punish such a person.

(i) For a person performing other prohibited acts other than those mentioned in clause (h) above: imprisonment from two years to ten years and a fine from one hundred thousand rupees to two million rupees.

Explanation: For the purpose of this section, "gravity of the offence" means the gravity of the offence determined based on the nature and quantity of the narcotic drug, the purpose of storage, purchase-sale, transport, or import-export, the gang or organization of the accused, the use of weapons or force by the accused, involvement in causing a minor to commit a criminal act, trafficking conducted through institutions such as educational, social, and cultural organizations, trafficking conducted by a person holding a public position by misusing such position.

(2) Amended by the Second Amendment. A person acting in contravention of Sections 5a and 5b shall be liable to imprisonment for up to one month or a fine of up to one thousand rupees or both. 15. Punishment for Allowing Prohibited Acts in Own House, Land, or Vehicle: If the owner of any house, land, or vehicle, or a person enjoying the usufruct thereof, knowingly allows any act prohibited under Section 4 to be performed in such house, land, or vehicle, such person shall be liable to imprisonment from six months to five years or a fine of up to ten thousand rupees. If the owner of the house, land, or vehicle has themselves committed the offence or allowed the offence to be committed, such house, land, or vehicle may also be confiscated. 16. Additional Punishment for Repeat Offenders: If a person who has already been punished once under this Act commits an offence again under this Act, such person shall, in addition to the penalty prescribed for each such subsequent offence, be liable to imprisonment for up to an additional five years and a fine of up to one hundred thousand rupees. 17. Punishment for Conspiracy, Attempt, Incitement, and Being an Accomplice: A person who conspires or attempts to commit an offence punishable under this Act, incites others to commit such an offence, or is an accomplice in committing such an offence, shall be liable to half of the punishment prescribed for committing that offence itself. Inserted by the Third Amendment. 17a. Punishment for

Trafficking Other Substances by Impersonating them as Narcotic Drugs: A person or gang who, by making someone believe that any other substance, other than a narcotic drug, is a narcotic drug, performs acts such as trafficking, selling, distributing, exporting-importing, storing, producing, etc., of such substance shall be liable to half of the punishment prescribed for committing that offence. Inserted by the Third Amendment.17b.

Punishment for Not Providing Details or Documents Related to Narcotic Drugs: If any person, association, organization, or institution fails to provide any details or documents demanded by the Drug Control Officer or Investigation Officer in the course of obtaining details of narcotic drugs, such person, association, organization, or institution shall be liable to half of the punishment prescribed for committing that offence. 18.

Confiscation of Property Related to the Offender: All narcotic drugs related to an offender punishable under this Act, and all goods and equipment used to manufacture or produce such narcotic drugs, shall be confiscated, and any vehicle whatsoever, excluding trains and aircraft used for transporting such narcotic drugs, shall also be confiscated. Provided, such vehicle shall not be confiscated if the owner proves that the owner was not aware that the vehicle was being or would be used for committing such an offence. Inserted by the Second Amendment.18a.

Confiscation of Property: (1) All movable and immovable property acquired by performing any act prohibited under clauses (b), (c), (d), (e), and (f) of Section 4 shall be confiscated. (2) In a case related to an offence under clauses (b), (c), (d), (e), and (f) of Section 4, if a person convicted of the offence possesses financial means or property disproportionate to the source of known income of that person or that person's family, such property of that person shall be deemed to have been acquired through acts contrary to this Act and shall be confiscated as well, even if such property is held in the name of that person's family or anyone else, unless that person can prove otherwise. Inserted by the Third Amendment.(3) If there is a reasonable cause to believe that a person has committed an offence that may result in the confiscation of property under sub-sections (1) and (2), the officer hearing the case, upon a written request from the Drug Control Officer to freeze such person's property, may freeze such property. Amended by the Third Amendment.18b.

Reward to be Given to the Informant: A person who provides information to the Drug Control Officer regarding the trafficking or use of narcotic drugs, if the information leads to the conviction and punishment of the accused, shall be given an amount equal to twenty percent of any fine imposed as such punishment as a reward. The name of the person receiving such reward shall be kept confidential. Inserted by the Third Amendment.18c.

Exemption from Punishment: Notwithstanding anything contained in the prevailing law, if a person, even if involved in an offence, provides information and leads regarding a gang or any other gang involved in any narcotic drug trafficking punishable under this Act, thereby helping to identify and arrest the main offender, and if the request is made in the charge sheet for full or partial exemption from punishment under this Act, the officer hearing the case may also grant exemption from punishment accordingly. Inserted by the Third Amendment.18d.

Reward to be Given to Employees: After a person is sentenced to punishment and fine by the officer hearing the case for narcotic drug trafficking, the Government of Nepal may give an amount equal to twenty percent of such fine as a reward to the employees involved in narcotic drug control and investigation work. Inserted by the Third Amendment.18e.

Providing Some Amount of Fine to Medical Centres: If a person is sentenced to punishment and fine for narcotic drug trafficking, twenty percent of such fine shall be provided to treatment centres. If there is more than one such medical centre, the Chief Drug Control Officer shall determine the distribution of the amount of such fine. 19.

Authority Not to Prosecute or Grant Remission of Sentence: Except where the act involves a commercial purpose or a large quantity, if a person is found to have purchased, kept, or consumed only a small quantity of Amended by the First Amendment. cannabis and medicinal opium for personal use, if it is a first offence, the Drug Control Officer may keep a record of such person, obtain an undertaking not to repeat such offence, prepare a note not to

prosecute, and release the person; and even if a case has been filed, if the court adjudges it a minor offence under this section, the court may keep a record of such person, obtain an undertaking not to repeat such offence, and release such person for the first time without any punishment. Inserted by the Second Amendment.19a.

No Action Against a Person Undergoing Treatment: (1) Notwithstanding anything contained in clauses (a) and (d) of sub-section (1) of Section 14, a person consuming narcotic drugs who is undergoing treatment at any treatment and rehabilitation centre established by the Government of Nepal or recognized by the Government of Nepal for the treatment and rehabilitation of drug addiction shall not be liable to punishment under this Act. (2) In relation to persons undergoing treatment at the centres mentioned in sub-section (1), the concerned officer shall obtain treatment-related details in the format prescribed by the Government of Nepal from the concerned treatment and rehabilitation centre and prepare and maintain reports on a weekly and monthly basis. 20. Special Provision Regarding Stock of Narcotic Drugs Remaining Pursuant to Previous License: Upon the commencement of this Act, any stock of narcotic drugs remaining with any person according to a license obtained under the Intoxicating Substances Act, 2017 and the Intoxicating Substances Rules, 2019 shall be submitted to the Drug Control Officer within the prescribed period. 21. Provision for Narcotic Drugs Control Officer and Narcotic Drugs Control Administration: (1) For the implementation of the objectives of this Act, the Government of Nepal shall establish a Narcotic Drugs Control Administration under Amended by the Act to Amend Some Nepal Acts, 2078. the Ministry of Home Affairs, and may appoint or designate a Chief Drug Control Officer, one or more Drug Control Officers, Deputy Drug Control Officers, and other officers Amended by the First Amendment. as necessary. Amended by the Third Amendment.(2) The Chief Drug Control Officer shall be the head of the Narcotic Drugs Control Administration established pursuant to sub-section (1), and the Chief Drug Control Officer shall oversee, control, direct, and coordinate the work and actions related to narcotic drug control under this Act. Inserted by the Third Amendment.(3) Notwithstanding anything contained elsewhere in this Act, if any government employee is found to have accepted a bribe with the intent to assist a person trafficking or using narcotic drugs, such employee shall, in addition to the punishment provided by the prevailing law, be liable to half of the punishment prescribed for the person involved in the trafficking or use of narcotic drugs. Inserted by the First Amendment.21a.

Officer Hearing the Case and Appeal: (1) Except for offences related to clause (a) of Section 4, the authority to hear cases related to other offences under this Act shall vest in the court constituted or designated by the Government of Nepal by publishing a notice in the Nepal Gazette. (2) The court pursuant to sub-section (1) shall use the procedures and powers as per the Special Court Act, 2059 while conducting proceedings and adjudicating cases under this Act. (3) A person dissatisfied with a verdict or final order made by the court under sub-section (1) may appeal to the High Court. Inserted by the Third Amendment.21b. Duties, Functions, and Powers of the Investigation Officer: (1) An investigation officer deployed for narcotic drug control work shall, when required to investigate in connection with narcotic drugs, have the powers equivalent to those vested in the police under the prevailing law. (2) When investigating in the course of narcotic drug trafficking, the investigation officer shall have the power to search the goods of any person suspected in such narcotic drug trafficking, equivalent to the powers of a customs officer under the prevailing Customs Act. Provided, before conducting a search, the investigation officer must issue a search warrant to the concerned person. (3) In the course of a narcotic drug investigation, the investigation officer shall have the power to censor any item received by post that appears suspicious, equivalent to the powers of a postal officer under the prevailing Post Office Act. Inserted by the Third Amendment.21c. Power to Carry Scientific Instruments and Weapons: Officers involved in narcotic drug investigation work and employees associated with narcotic drug control shall have the right to carry and use scientific instruments, communication devices, weapons,

and ammunition required for such weapons in the course of investigation and control. 22. Government to be the Plaintiff: The Government of Nepal shall be the plaintiff in cases under this Act, and such case shall be deemed Transformed by the Act to Amend, Consolidate, Adjust, and Repeal Some Nepal Laws, 2074 and amended by the Act to Amend Some Nepal Acts Related to the Penal Code, 2075. to be included in Schedule-1 of the National Criminal Procedure Code, 2074. 22a. Repealed by the Second Amendment. Inserted by the Third Amendment.22b. No Punishment for Acts Done in Good Faith: No government employee shall be prosecuted or subjected to any other legal action in relation to any act done or attempted to be done in good faith pursuant to this Act. Inserted by the Third Amendment.22c.